

25PSCV03683 25PSCV03683

County: los-angeles

Division: Civil Law and Motion

Department: G

Hearing date: 2026-07-29

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Case Number: 25PSCV03683 Hearing Date: July 29, 2026 Dept: G

Plaintiff

Mediterranean Shipping Co. Société Anonyme's Application for Writ of Attachment

Respondent:

Defendant Click4Ship.Com, Inc.

Defendant

Click4Ship.Com, Inc.'s Motion for Order Precluding Evidence

Respondent:

Plaintiff Mediterranean Shipping Co. Société Anonyme (UNTIMELY)

TENTATIVE

RULING

Plaintiff

Mediterranean Shipping Co. Société Anonyme's Application for Writ of Attachment
is DENIED.

Defendant

Click4Ship.Com, Inc.'s Motion for Order Precluding Evidence is GRANTED.

BACKGROUND

This

is a collections action. On October 13,

2025, plaintiff Mediterranean Shipping Co. Société Anonyme (MSC) filed the
Complaint, alleging causes of action for (1) quantum meruit and quantum

valebant, (2) open book account, and (3) account stated.

On

March 6, 2026, defendant Click4ship.Com, Inc. (C4S) filed the Cross-Complaint, alleging a sole cause of action for declaratory relief. (The court sustained a demurrer to the Cross-Complaint with leave to amend, but C4S did not amend the pleading.)

On

November 13, 2025, MSC filed an application for writ of attachment. On July 20, 2026, C4S filed an opposition, and there is no reply.

On

March 11, 2026, C4S filed the motion to preclude evidence. On May 7, 2026, MSC filed the opposition, and there is no reply.

This

case is set for a case management conference, a continued hearing on the application for writ of attachment, and a continued hearing on the motion to preclude evidence on July 29, 2026.

REQUESTS

FOR JUDICIAL NOTICE

C4S

requests that the court take judicial notice of documents filed with the court. The court may take judicial notice of the records of any California court, including its own. (Evid. Code, § 452, subd. (d)(1).)

Thus,

the court takes judicial notice of the requested records.

APPLICATION

FOR WRIT OF ATTACHMENT

MSC

seeks a writ of attachment to secure \$301,069.50. For the following reasons, the application is DENIED.

Legal

Standard

Attachment is proper where: (1) "[t]he claim is one upon which an attachment may be issued;" (2) "plaintiff has established the probable validity of the claim upon which the attachment is based;" (3) "[t]he attachment is not sought for a purpose other than the recovery on the claim upon which the attachment is based;" and (4) "[t]he amount to be secured by the attachment is greater than zero." (Code Civ. Proc., § 484.090, subd. (a); see also *Bank of America v. Salinas Nissan, Inc.* (1989) 207 Cal.App.3d 260, 271, holding that the plaintiff pursuing attachment has the burden of establishing grounds justifying attachment, including presenting facts that show probable validity of the underlying claim.)

The court may issue an attachment on a claim for money arising under contract, so long as the amount claimed by the party seeking attachment is reasonably ascertainable in an amount greater than \$500.00, excluding interest, attorney's fees, and costs. (Code Civ. Proc., § 483.010, subd. (a).) "Probable validity means that 'more likely than not' the plaintiff will obtain a judgment on that claim." (*Santa Clara Waste Water Co. v. Allied World Nat. Assurance Co.* (2017) 18 Cal.App.5th 881, 885, citing Code Civ. Proc., § 481.190.)

The application must be "supported by an affidavit or declaration showing that the applicant, on the facts presented, would be entitled to a judgment on the claim upon which the attachment is based." (*Lydig Construction, Inc. v. Martinez Steel Corp.* (2015) 234 Cal.App.4th 937, 944, citing Code Civ. Proc., § 484.030.) The affidavit or declaration must set forth facts with particularity, and a verified complaint may be utilized in lieu of such affidavit. (Code Civ. Proc., § 482.040.) Furthermore, any documentary evidence must be presented in admissible form. (*Lydig Construction, supra*, at 944.)

Discussion

For the first and fourth elements, the underlying claim is for an alleged debt of \$301,069.50. (See Compl., ¶¶ 5–6, 8, 10.)

According to the application, the debt is based upon a contract. (See Appl., ¶ 3, checking the box citing

Code Civ. Proc., § 483.010, which deals with writs of attachment “in an action on a claim or claims for money . . . based upon a contract.”) For the third element, there is no indication that the attachment sought is for any purpose other than recovery on the claims for common counts. (See generally Appl.; see also McKoy Decl.)

However, MSC does not meet its burden of demonstrating a probable validity of prevailing on the claim. MSC’s declaration explains its bookkeeping practices and the exhibits attached thereto include invoices charged to C4S. (See McKoy Decl., ¶¶ 1, 3–7, 9; see also McKoy Decl., Exhs. A–B.) Though MSC’s agent alleges in the declaration that C4S requested services and that MSC provided those services, there is no evidence of an underlying contract whereby C4S agreed to pay MSC and defaulted on those payments. (See McKoy Decl., ¶ 2.) At most, the court finds the declaration demonstrates a probability of success on causes of action for common counts. (See McKoy Decl., ¶¶ 3–9, listing paragraphs under subheadings of “Book Account” and “Account Stated.”) But as the Court of Appeal explains, “A common count is not a specific cause of action, however; rather, it is a simplified form of pleading normally used to aver the existence of various forms of monetary indebtedness, including that arising from an alleged duty to make restitution under an assumpsit theory. When a common count is used as an alternative way of seeking the same recovery demanded in a specific cause of action, and is based on the same facts, the common count is [subject to the same objection as the underlying cause of action].” (McBride v. Boughton (2004) 123 Cal.App.4th 379, 394, cleaned up.)

Since the court can identify no underlying contract claim to the claims for common counts, MSC cannot rely solely on its probability of success on common count claims in support of a writ of attachment.

Therefore, the application for writ of attachment is DENIED.

MOTION
TO PRECLUDE EVIDENCE

C4S

seeks an order precluding MSC from giving evidence of the account. For the following reasons, the motion is GRANTED.

Legal

Standard

A

plaintiff need not plead each item in an alleged account in the complaint. (See Code Civ. Proc., § 454.) A defendant may make a written demand for a

copy of the account, and the plaintiff must provide a copy of the account to the demanding defendant. (See *id.*) If the plaintiff fails to provide a copy of the account as demanded, then the plaintiff is precluded from giving evidence of the account. (See *id.*) If the plaintiff provides a copy of the account that is too general or is missing any item, then the court may order a further account. (See *id.*)

Discussion

C4S

claims that it served MSC with a written demand for a copy of the account on February 13, 2026. (See Nelson Decl., ¶ 2; see also Nelson Decl., Exh. A.) C4S did not receive a copy of the account by the ten-day deadline on February 25, 2026.

(See Nelson Decl., ¶ 3.) MSC does not contend in its opposition that it complied with Section 454 by providing a copy of the account before the statutory deadline; instead, MSC contends that the motion is moot because it subsequently served a copy of the account on March 19 and 20, 2026. (See Opp. to Mot., p. 1.)

If

the motion sought to compel MSC to provide a copy of the account, then court agrees that the motion would be moot.

However, the motion seeks to preclude MSC from providing evidence of the account, as prescribed by Section 454.

Under

these circumstances and facts, the motion is not moot, and an order precluding evidence of the account is appropriate under Section 454.

Therefore,

the motion to preclude evidence is GRANTED.

CONCLUSION

For

these reasons, the application for writ of attachment is DENIED.

The

motion for order precluding evidence is GRANTED.